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Historical Background

EVOLUTION OF THE INDIAN CONSTITUTION

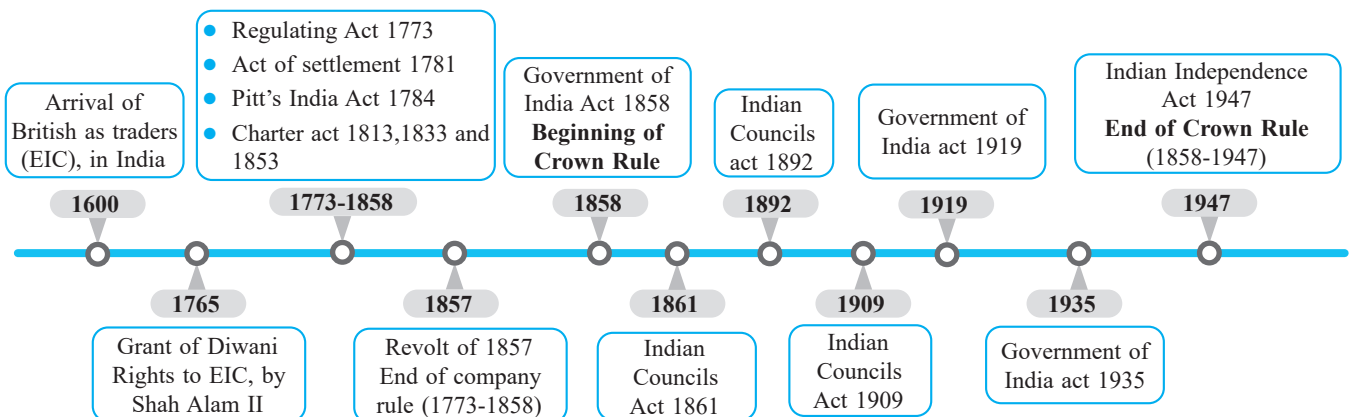
The Indian Constitution has its origins in acts and policies of the East India Company and the British government. It came into effect on January 26, 1950, marking India's transition from a **dominion** to a **Sovereign, Democratic, Republic**.

Dr. B.R. Ambedkar played a pivotal role as the **Chairman of the Drafting Committee**. The drafting process involved

the Constituent Assembly from 1946 to 1949, featuring extensive discussions. Its evolution can be understood in two key periods:

- **Company Rule (1773-1858):** Established the governance framework under the **East India Company**.
- **Crown Rule (1858-1947):** Marked **direct British control**, leading to major administrative changes.

The Acts Enacted by the British are Explained Here in Chronological Order



COMPANY RULE (1773-1858)

Regulating Act of 1773

Governor-General: Warren Hastings

- **First British Regulation:** Marked the beginning of British control over **East India Company's** affairs in India.
- **Central Administration:** Laid the foundation for centralised governance.
- **Company's Role:** Officially recognized the Company's **political and administrative authority**.
- **Governor-General Appointment:** Appointed **Lord Warren Hastings** as Governor-General of Bengal with a **4-member Executive Council**.
- **Supreme Court Establishment:** Set up the **Supreme Court in Calcutta (1774)**.
- **Prohibition of Private Trade:** Banned **private trade** and **bribes** among Company servants.

- **British Oversight:** Required the **Court of Directors** to report on revenue, civil, and military matters.
- **Presidency Subordination:** **Bombay and Madras** presidencies were made subordinate to **Bengal's Governor-General**.

Amending Act of 1781 (Act of Settlement)

Governor-General: Warren Hastings

- **Governor-General and Council:** Exempted from **Supreme Court jurisdiction** for official acts.
- **Revenue Matters:** Excluded revenue issues from Supreme Court's jurisdiction.
- **Personal Law:** Court to apply **Hindu/Mohammedan law** for respective defendants.
- **Appeals:** Provincial Court appeals directed to **Governor-General-in-Council**.
- **Regulations:** Governor-General-in-Council empowered to frame **regulations** for Provincial Courts and Councils.

Pitt's India Act, 1784

Governor-General: Warren Hastings

- **Function Distinction:** Separated **commercial** and **political functions** of the Company.
- **Dual Government:** The Act established:
 - **Board of Control:** Managed **political affairs** and supervised civil and military operations or revenues.
 - **Court of Directors:** Oversaw **commercial affairs**.
- **British Possessions:** First referred to Company territories as '**British possessions in India**', granting the British Government **supreme control**.

Act of 1786

Governor-General: Lord Cornwallis

- **Governor-General Appointment:** Lord Cornwallis appointed as Governor-General of Bengal and the **Commander-in-Chief**.
- **Override Authority:** Cornwallis was granted power to **override council decisions** in special cases.

Charter Act of 1793

Governor-General: John Shore

- **Extended Power:** Overriding powers granted to Lord Cornwallis were extended to future **Governors-Generals** and **Governors of Presidencies**.
- **Increased Authority:** Enhanced **Governor-General's** control over **Bombay** and **Madras** Presidencies.
- **Trade Monopoly:** Extended the **Company's** monopoly in India for an additional **twenty years**.
- **Council Membership:** Specified that the **Commander-in-Chief** would not be a council member unless appointed.
- **Financial Provisions:** Mandated payment for **Board of Control** members and staff from **Indian revenues**.

Charter Act of 1813

Governor-General: Lord Minto I

- **Ended the trade monopoly** of the East India Company, allowing all British merchants to trade in India, **except for trade with China and trade in tea**.
- **Asserted British Crown sovereignty** over Company territories in India.
- Empowered local governments to **impose taxes** and punish defaulters.
- Extended the Company's rule for another **20 years**.
- Enhanced the powers of the **Board of Control**.
- Allowed **Christian missionaries** to promote moral and religious improvements in India.

- Mandated an annual investment of **Rs. 1 Lakh** in Indian education.
- Regulated the Company's **territorial revenues** and **commercial profits**, requiring separate accounts.

Charter Act of 1833

Governor-General of India: William Bentinck

- Marked the **final step towards centralization** in British India, giving it an **All-India** character.
- **Legalised British colonisation**; the East India Company became an **administrative body**, holding territories "in trust for His Majesty, His heirs and successors".
- Ended the **Company's monopoly** on trade with **China** and in **tea**.
- The government of the Governor-General came to be known as the "Government of India," and the council as the "India Council."
- Designated the **Governor-General of Bengal** as the "**Governor-General of India**," granting full civil and military powers; **Lord William Bentinck** was the first appointee.
- Transferred **legislative powers** from Bombay and Madras to the **Governor-General of India**, with laws termed "**Acts**."
- Empowered the Governor-General to amend or repeal laws in British India.
- Proposed an **open competition** system for civil servant selection, but faced opposition from the **Court of Directors**.
- Established the **Indian Law Commission** (1834) for legal codification, chaired by **Lord Macaulay**.

Charter Act of 1853

Governor-General of India: Lord Dalhousie

- The last in a series of Charter Acts (1793-1853).
- **Separated** legislative and executive functions of the Governor-General's council.
- Introduced **local representation** in the Indian Legislative Council with six new legislative councillors, totalling **12** members.
- Reduced the Board of Directors from **24** to **18**, with **6** nominated by the British Crown.
- The legislative council functioned as a "**Mini-Parliament**", mirroring British procedures.
- Implemented an **open competition system** for civil service recruitment, allowing Indian participation; the **Macaulay Committee** was appointed in **1854**.
- The fourth **law member** gained voting rights as a full member.

CROWN RULE (1858-1947)

Government of India Act, 1858 (Act for Good Government of India)

Viceroy: Lord Canning

- **Abolition of the East India Company:** Powers transferred to the **British Crown**.
- **Viceroy of India:** The **Governor General** became the Viceroy, with Lord Canning as the first appointee.
- **End of Double Government:** Abolished the **Board of Control** and **Court of Directors**.
- **New Office:** Established the **Secretary of State for India**, a **British Cabinet** member accountable to Parliament. Created an **advisory Council** of **15-members** to assist the Secretary, chaired by him.
- **Corporate Body:** Formed the **Secretary of State-in-Council**, capable of suing and being sued in India and in England.

Indian Councils Act, 1861

Viceroy: Lord Canning

- The Viceroy could nominate **Indians** as non-official members of his council; in 1862, **Lord Canning** nominated three: the **Raja of Benaras**, **Maharaja of Patiala**, and **Sir Dinkar Rao**.
- Restored **legislative powers** of **Bombay** and **Madras**, initiating **decentralisation** and granting provinces near autonomy by 1937.
- Established **New Legislative Councils** for **Bengal** (1862), **Northwestern Province** (1886), and **Punjab** (1897).
- Enabled the Viceroy to issue **Ordinances (valid for 6 months)** for **emergencies** without council consent.
- Introduced the **Portfolio system**, allowing council members to independently manage departments.

Indian Councils Act, 1892

Viceroy: Lord Lansdowne

- **Increased Non-Official Members:** Non-official representation in **Central** and **Provincial Legislative Councils** was raised while maintaining an official majority.
- **Expanded Functions:** Legislative Councils gained powers to **discuss budgets** and address questions to the **Executive**.
- **Nomination Process:** Non-official members were nominated:
 - **Central Council:** By the Viceroy upon recommendations from the **Provincial Legislative Council** and **Bengal Chamber of Commerce**.
 - **Provincial Council:** By the Governor on advice from **District Boards**, **Municipalities**, **Universities**, **Trade Associations**, **Zamindars**, and **Chambers**.

- **Indirect Elections:** Although **elections** were not explicitly mentioned, a limited **indirect election** process for nominated members was introduced.

Indian Councils Act, 1909 (Morley Minto Reforms)

Viceroy: Lord Minto II

- **Legislative Council:** Membership increased from **16 to 60**; official majority retained.
- **Provincial Councils:** Allowed **non-official majority**, membership varied in provinces.
- **Deliberative Powers:** Members could ask **supplementary questions** and propose budget resolutions; separate budget voting introduced; budget as a whole could still not be voted upon.
- **Separate Electorate:** Muslims could vote only for Muslim candidates, legalising **communalism**. Lord Minto came to be known as “**Father of Communal Electorate**”.
- **Representation:** First Indian, **Satyendra Prasad Sinha**, appointed to the Viceroy’s Executive Council as law member; separate representation for **Presidency Corporations**, **Chamber of Commerce**, **Universities**, and **Zamindars**.

Government of India Act of 1919 (Montagu-Chelmsford Reforms)

Viceroy: Lord Chelmsford

- **Objective:** On August 20, 1917, the British Government aimed to gradually introduce a **Responsible Government** in India.
- **Classification of Subjects:** Administration was divided into **central** and **provincial subjects** under the **Devolution Rules**, enabling authority delegation from the centre to provinces.
- **Dyarchy:** Introduced a dual governance scheme in provincial subjects:
 - **Reserved Subjects:** Governed by the **Governor General** and his Executive Council, not accountable to the Legislative Council. [UPSC 2022]
 - **Transferred Subjects:** Managed with legislative council oversight. [UPSC 2022]
- **Legislative Structure:** Replaced the Indian Legislative Council with a **Bicameral Legislature**—Upper House (Council of State) and Lower House (Legislative Assembly) with a majority elected directly.
- **Indian Representation:** Included three Indian members in the **Viceroy’s Executive Council** (excluding the Commander-in-Chief).
- **Electoral Reforms:** Extended separate electorates for **Sikhs**, **Indian Christians**, **Anglo-Indians**, and **Europeans**; franchise limited to property, tax, and educational criteria.

- **Financial Autonomy:** Separated the **Provincial Budget** from the Central Budget, allowing provinces to enact their own budgets.
- **High Commissioner for India:** Established in London, transferring certain functions from the Secretary of State for India.
- **Civil Service Recruitment:** It provided for establishment of a public service commission and thus a **Central Public Service Commission** was created in 1926.
- **Chamber of Princes:** It proposed establishment of a Chamber of Princes (Narendra Mandal), which was formed in 1921 with 120 members (princes and representatives), promoting discussion on shared interests.
- **Future Review:** Mandated a statutory commission to assess its effectiveness after ten years.

The Simon Commission (1927)

- **Composition:** A seven-member statutory commission led by **Sir John Simon**, appointed by the **British Government**, Composed entirely of **British members**.
- **Key Proposals** (Report submitted in 1930):
 - Abolishment of Dyarchy.
 - Expansion of Responsible Government in provinces.
 - Creation of a Federation of British India and princely states.
 - Maintenance of Communal Electorate.

Communal Award (1932)

- Proposed by **Prime Minister Ramsay MacDonald** to ensure minority representation. **Separate Electorates** for **Muslims, Sikhs, Indian Christians, Anglo-Indians, Europeans**, and extended to the **depressed classes** (Scheduled Castes).
- **Gandhi's Opposition:** Mahatma Gandhi opposed separate electorates for the depressed classes, leading to a **fast in Yerawada Jail**.
- **Poona Pact:** Agreement between **Congress** and **Dr. B.R. Ambedkar**. Preserved **Hindu joint electorate** & reserved seats for the depressed classes.
- **Government Acceptance:** The British Government accepted the Poona Pact, eliminating separate electorates for the depressed classes, with provisions incorporated into the **Government of India Act, 1935**

Government of India Act, 1935

Viceroy: Lord Willingdon

The **Government of India Act, 1935** marked a significant step towards a **responsible government** in India, comprising **321 sections** and **10 schedules**.

- Aimed to establish an **All-India Federation** with provinces and princely states, but it failed due to non-participation from the princely states. [UPSC 2024]

- Powers were divided into three lists: **Federal** (59 items), **Provincial** (54 items), and **Concurrent** (36 items), with **residual powers** assigned to the **Viceroy**. [UPSC 2012]
- Introduced **provincial autonomy**, introduced **dyarchy** at the centre; autonomous governments formed in 1937 but were suspended in 1939.
- Established **bicameralism** in six provinces, Bengal, Bombay, Madras, Bihar, Assam and the United Provinces.
- Introduced separate electorate for depressed classes (Scheduled Castes), women, and labourers.
- Extended franchise to **14%** of the population and created the **Reserve Bank of India**.
- Established **Federal and Provincial Public Service Commissions** and a **Federal Court** in 1937.
- **Burma** was separated from India, and two new provinces, **Orissa** and **Sind**, were created.
- Introduced safeguards for **minority interests** and established a **Federal Railway Authority**. An **Auditor-General** was appointed for financial oversight.

Indian Independence Act, 1947

Viceroy: Lord Mountbatten

- **Partition Plan:** Presented by **Lord Mountbatten** on June 3, 1947; accepted by the **Congress** and **Muslim League**, leading to India's independence on **August 15, 1947**.
- **Dominions Established:** Created two independent dominions—**India** and **Pakistan**—with the right to exit the **British Commonwealth**.
- **Governance Changes:**
 - Abolished the office of **Viceroy**; introduced a **Governor-General** for each dominion.
 - Constituent Assemblies empowered to create constitutions and repeal British laws, including the **Independence Act**.
- **Legislative Authority:** Assemblies could legislate until new constitutions were enacted; British acts post-August 15 required dominion approval.
- **End of British Control:** The **Secretary of State for India's** role was abolished; British paramountcy over princely states lapsed, granting them autonomy.
- **Civil Services:** Appointment and reservation by the Secretary of State ceased, but pre-1947 appointees retained benefits.
- **Leadership:** **Lord Mountbatten** became the first **Governor-General** of India. The **Constituent Assembly** formed in 1946 became the parliament of India.

First Cabinet After Independence

No	Members	Portfolios
1	Jawaharlal Nehru	Prime Minister; External Affairs and Commonwealth Relations; Scientific Research
2	Sardar Vallabhbhai Patel	Home, Information and Broadcasting; States
3	Dr Rajendra Prasad	Food and Agriculture
4	Maulana Abul Kalam Azad	Education
5	Dr. John Mathai	Railways and Transport

6	R.K. Shanmugham Chetty	Finance
7	Dr. B.R. Ambedkar	Law
8	Jagjivan Ram	Labour
9	Sardar Baldev Singh	Defence
10	Rajkumari Amrit Kaur	Health
11	C.H. Bhabha	Commerce
12	Rafi Ahmed Kidwai	Communication
13	Dr. Shyama Prasad Mukherjee	Industries and Supplies
14	V.N. Gadgil	Works, Mines, and Power



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